



CHAPTER 35.

An Act to amend the Housing (Rural Workers) Acts, 1926 and 1931. A.D. 1938.
[23rd June 1938.] —

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subsection (2) of section two of the Housing (Rural Workers) Act, 1926 (in this Act referred to as "the principal Act") shall have effect as if the thirtieth day of September nineteen hundred and forty-two were therein substituted for the twenty-fourth day of June nineteen hundred and thirty-eight, and section four of the principal Act (which relates to Government contributions to expenses of local authorities under the principal Act) shall have effect accordingly. Extension of time for applying for assistance under s. 2 of 16 & 17 Geo. 5. c. 56.

(2) Subject to the provisions of any amending scheme made by a local authority with the approval of the Minister, any reference in a scheme under the principal Act to any date, being a reference which is by virtue of subsection (2) of section thirty-seven of the Housing Act, 1935, to be construed as a reference to the twenty-fourth day of June nineteen hundred and thirty-eight, shall be construed as a reference to the thirtieth day of September nineteen hundred and forty-two. 25 & 26 Geo. 5. c. 40.

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Power to
pay lump
sum grants
in instal-
ments.

2.—(1) In paragraph (a) of subsection (4) of section two of the principal Act (which specifies the ways in which a grant may be made thereunder), for the words “by way of a lump sum payment to be made after the completion of the works”, there shall be substituted the words “by way of a lump sum payment, to be made “either after the completion of the works or partly in “instalments from time to time as the works progress “and as to the balance after the completion of the “works, so however that, where the payment is to be “made partly in instalments, the aggregate of the “instalments paid shall not at any time before the “completion of the works exceed one-half of the aggregate cost of the works executed up to that time”.

(2) In paragraph 3 of the Schedule to the principal Act, after the words “by way of loan”, there shall be inserted the words “or by way of grant to be made partly in instalments”.

Repayments
of grant to
be pro-
portionate
to un-
expired
part of
period for
observance
of con-
ditions.

3. The sums repayable under the principal Act—

- (a) by the owner of a dwelling, to the local authority, by virtue of proviso (ii) to subsection (1) of section three thereof, on any exercise of the option to repay conferred by that proviso; and
- (b) by the local authority to the Minister, by virtue of subsection (4) of section four thereof, on any such exercise of option as aforesaid;

shall, if the option is exercised, after the commencement of this Act, in lieu of being ascertained by reference to the whole amount of a grant paid by the local authority, or of contributions made by the Minister, as the case may be, be ascertained by reference to a part thereof proportionate to the extent to which the relevant period of application of conditions remains unexpired at the time of the exercise of the option.

Amendment
of defini-
tion of
normal
agricultural
rent.

4. In paragraph (b) of subsection (1) of section three of the principal Act (which defines the expression “normal agricultural rent” in relation to the rent payable in respect of a dwelling to which conditions apply by virtue of the principal Act), for the words “average “rent for the time being paid by agricultural workers in

"the district", there shall be substituted the words "rent normally paid by agricultural workers in the district, or, if it appears to the local authority that the number of agricultural workers in the district is insufficient for the determination of any sum as being such rent as aforesaid, the rent normally paid by persons of substantially the same economic condition in the district", and after the words "rent normally paid by agricultural workers in the district", there shall be inserted the words "or, if it appears to the local authority that the number of agricultural workers in the district is insufficient for the determination of any sum as being such rent as aforesaid, than the rent normally paid by persons of substantially the same economic condition in the district".

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5.—(1) In the case of a dwelling in respect of which any payment in respect of assistance by way of grant is made under the principal Act after the commencement of this Act, the following condition shall apply in relation to the dwelling for a period of twenty years from the date on which it first becomes fit for occupation after the completion of the works, in addition to the conditions specified in section three of the principal Act, that is to say, all reasonable steps shall be taken to secure the maintenance of the dwelling so as to be in all respects fit for habitation as a dwelling by persons of the working-classes.

Additional condition as to dwellings in respect of which assistance given by way of grant.

(2) Proviso (ii) to subsection (1) of section three of the principal Act (which relates to the cesser of conditions on repayment of grant), and paragraph (b) of subsection (5) of that section (which relates to the recovery of sums payable by reason of breach of conditions), shall have effect as if the condition aforesaid were contained in, and applicable by virtue of, the said section three.

6. Where assistance by way of grant has been given under the principal Act (whether before or after the commencement of this Act) in respect of a dwelling, and subsequently further assistance has been so given in respect of that dwelling, subsection (1) of section three of the principal Act shall have effect with the substitution for the condition specified in paragraph (b) thereof of the following condition, that is to say, the rent payable by the occupier in respect of the dwelling shall not exceed the amount permissible before the execution of the works in

Amendment of condition as to maximum rent where further assistance given by way of grant.

A.D. 1938. — respect of which the further assistance was given, increased by a sum equal to the following percentage of the amount by which the estimated cost of those works exceeds the amount of the further assistance, that is to say, if those works were completed before the first day of January nineteen hundred and thirty-five, three per cent. or, if they were completed on or after that day, four per cent., and no fine, premium or other like sum shall be taken in addition to the rent.

Apportionment of rent of dwelling let with other land.

7. Where a dwelling in respect of which assistance has been given under the principal Act (whether before or after the commencement of this Act) is let to an occupier together with other land at a single rent, such proportion of that rent as the local authority may determine shall be deemed, for the purposes of paragraph (b) of subsection (1) of section three of the principal Act, to be the rent payable by the occupier in respect of the dwelling.

Amendment as to expenses of county councils.

8. In the proviso to subsection (3) of section five of the principal Act, after the words "the expenses of the council of the county under this Act" where those words first occur, there shall be inserted the words "(other than expenses in connection with assistance given by the county council in respect of a house or building situated in the county district)", and after the words "on account of the expenses", there shall be inserted the words "(other than as aforesaid)".

Power to give increased assistance for abatement of overcrowding. 26 Geo. 5. & 1 Edw. 8. c. 51.

9.—(1) Where a dwelling, in respect of which assistance by way of grant was given under the principal Act on an application received by the local authority before the second day of August nineteen hundred and thirty-five, is overcrowded within the meaning of Part IV of the Housing Act, 1936, and an application is made to the local authority for further assistance in respect of works proposed to be executed in respect of the dwelling for the purpose of the abatement of the overcrowding, the local authority may give further assistance by way of grant in respect of the dwelling in excess of the amount which apart from this section would have been permissible, but in other respects subject to and in accordance with the provisions of the principal Act, so however that the amount of the further assistance shall not exceed two-thirds of the estimated cost of any works proposed to be executed or one hundred pounds, whichever is the less,

and that the total amount of all the grants made in respect of the dwelling shall not exceed one hundred and fifty pounds : A.D. 1938.
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Provided that no further assistance shall be given under this section unless the local authority are satisfied that upon the completion of the works the dwelling will cease to be overcrowded as aforesaid.

(2) Any increase attributable to the exercise of the powers conferred by this section in the sum payable out of moneys provided by Parliament by virtue of section four of the principal Act shall be defrayed out of moneys so provided.

10.—(1) Any contributions made under section four of the principal Act towards any expenses incurred by a local authority being a county council in the Highlands and Islands in making any grant under the principal Act in pursuance of an application for assistance received by them after the twenty-ninth day of March nineteen hundred and thirty-eight, shall, in lieu of being an amount equal to one-half, be an amount equal to three-quarters of the estimated average annual payments referred to in subsection (2) of the said section. Special provisions as to Scotland.

In this subsection the expression "Highlands and Islands" means the counties specified in the Schedule to this Act.

(2) Paragraph (e) of section eight of the principal Act is hereby repealed and in lieu thereof the provisions of subsection (3) of this section shall have effect.

(3) Where assistance by way of grant has been given in respect of a dwelling situated on a holding occupied by a landholder, the following provisions shall have effect :—

(a) where the assistance has been given to the landholder, the local authority shall intimate to the landlord of the holding that assistance has been so given and the amount thereof, and such intimation shall be given—

(i) in any case where assistance has been so given before the commencement of this Act, within three months after the commencement of this Act;

(ii) in any other case, within one month after assistance has been so given :

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Provided that nothing in this paragraph shall require such intimation to be given in any case where before the commencement of this Act the conditions applicable in relation to the dwelling by virtue of the principal Act have ceased to have effect;

- (b) if at any time within the period during which conditions apply by virtue of the principal Act in relation to the dwelling compensation becomes payable by the landlord to the landholder under the Small Landholders (Scotland) Acts, 1886 to 1931, in respect of permanent improvements, including the dwelling, so much of the value of the dwelling as is attributable to the assistance shall be taken into account in assessing the compensation so payable and shall be deducted therefrom;
- (c) notwithstanding the provisions of paragraph (d) of section eight of the principal Act, the landholder for the time being in occupation of the holding shall for the purposes of sections two and three of the said Act be deemed to be the owner of the dwelling if the works in respect of which such assistance has been given constitute a permanent improvement in respect of which he would on the termination of his tenancy be entitled to compensation under the Small Landholders (Scotland) Acts, 1886 to 1931;
- (d) the landlord of the holding shall not at any time within the period during which conditions apply by virtue of the principal Act be entitled to obtain any consideration by way of rent or otherwise in respect of so much of the value of the dwelling as is attributable to the assistance;
- (e) so long as the holding is subject to the provisions of the Small Landholders (Scotland) Acts, 1886 to 1931, paragraph (b) of subsection (1) of section three of the principal Act and section seven of this Act shall not apply in relation to the dwelling, and paragraph (c) of subsection (1) of the said section three shall have effect as if for the words "conditions (a) and (b) are", there were substituted the words "condition (a) is".

(4) Subsection (2) of section one of this Act shall have effect as if for the reference to section thirty-seven of the Housing Act, 1935, there were substituted a reference to section thirty-four of the Housing (Scotland) Act, 1935. A.D. 1938.
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25 & 26
Geo. 5. c. 41.

(5) Section nine of this Act shall have effect as if for the reference to Part IV of the Housing Act, 1936, there were substituted a reference to Part I of the Housing (Scotland) Act, 1935, and as if for the words "the abatement of the" there were substituted the words "putting an end to".

(6) This section shall extend to Scotland only.

11.—(1) Where in pursuance of section two of the principal Act a local authority give assistance by way of loan to the owner of a dwelling, then, subject to the provisions of this section and to such conditions as may be approved by the Department, the loan may, in lieu of being secured by a bond and disposition in security or other deed of security, be secured by an order (in this section referred to as a "charging order") made by the local authority providing and declaring the dwelling, or the dwelling and such other subjects belonging to the owner of the dwelling as the local authority and such owner may agree, to be charged and burdened with an annuity to repay the amount of the loan. Addi-
tional pro-
visions with
respect to
loans by
local autho-
rities in
Scotland.

(2) The annuity charged shall commence from the date of the order, and shall be a sum of such amount and shall be payable to the local authority or their assignees for such period of years, not exceeding twenty, as the local authority and the owner may agree.

(3) A local authority shall not make a charging order, and a charging order shall not be effectual, unless—

(a) the local authority have served on every person appearing in the Register of Sasines as the proprietor of, or as holding a heritable security over, the subjects or any part thereof to be charged and burdened with the said annuity, notice that if no objection is intimated to them in writing by such person within twenty-one days from the date of service of the notice, they intend to make such charging order; and

(b) no objection has been so intimated by any person on whom notice has been so served.

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15 & 16
Geo. 5. c. 15.

(4) The provisions of section twenty-two of the Housing (Scotland) Act, 1925, shall apply to a charging order made under this section in like manner as they apply to a charging order made under section twenty-one of the said Act, subject to the following and any other necessary modifications—

- (a) subsection (2) shall apply as if after the words “advances of public money” there were inserted the words—

“(d) any rentcharge secured on the premises by absolute order made under and in terms of the Improvement of Land Act, 1864, or the Lands Improvement Company’s Acts, 1853 to 1920;

(e) any loan made for agricultural purposes in pursuance of the Agricultural Credits (Scotland) Act, 1929, by any company incorporated for the purposes of that Act, where such loan has been secured on the premises by a bond and disposition in security or other deed of security duly registered in the appropriate Register of Sasines; and

(f) any charge on the premises created under any provision in any Act authorising a charge for recovery of expenses incurred by a local authority under section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, or by a local authority or an owner under section twenty of the Housing (Scotland) Act, 1925, or section fifteen of the Housing (Scotland) Act, 1930 ”;

- (b) subsection (3) shall not apply.

(5) For the purpose of this section, a notice may be served by delivering it to the person on whom it is required to be served or by sending it by registered letter to such person at his usual or last known address, or if such person cannot be found, to the Extractor of the Court of Session. An acknowledgment endorsed on such notice or a copy thereof, by such person, or where the notice is sent by registered letter, a certificate subscribed by the clerk to the local authority that such notice was duly posted and having the Post Office receipt for the

registered letter attached shall be conclusive evidence that such notice was duly served on the date stated in the acknowledgment or Post Office receipt. A.D. 1938.
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(6) In this section the expression “owner” has the like meaning as in section forty-nine of the Housing (Scotland) Act, 1930. 20 & 21
Geo. 5. c. 40.

(7) This section shall extend to Scotland only.

12.—(1) This Act may be cited as the Housing (Rural Workers) Amendment Act, 1938. Short title,
citation,
construction
and extent.

(2) This Act shall be construed as one with the Housing (Rural Workers) Acts, 1926 and 1931, and, in its application to England, with sections thirty-seven and thirty-eight of the Housing Act, 1935, and, in its application to Scotland, with sections thirty-four and thirty-five of the Housing (Scotland) Act, 1935.

(3) The Housing (Rural Workers) Acts, 1926 and 1931, sections thirty-seven and thirty-eight of the Housing Act, 1935, and this Act may be cited together as the Housing (Rural Workers) Acts, 1926 to 1938, and the Housing (Rural Workers) Acts, 1926 and 1931, sections thirty-four and thirty-five of the Housing (Scotland) Act, 1935, and this Act may be cited together as the Housing (Rural Workers) (Scotland) Acts, 1926 to 1938.

(4) References in this Act to the principal Act shall be construed as references to that Act as amended by any subsequent enactment, including, except where the context otherwise requires, this Act.

(5) This Act shall not apply to Northern Ireland or to the administrative county of London.

A.D. 1938.

SCHEDULE.

Section 10.

The counties of—

Argyll
Caithness
Inverness
Ross and Cromarty
Sutherland
Orkney and
Zetland.

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